

March 14, 2025

VIA EMAIL [REDACTED]

Office of Science and Technology Policy

and NCO/NITRD

Att'n: Mr. Faisal D'Souza

2415 Eisenhower Avenue

Alexandria, VA 22314

Re: Ivan Tsarynny's (*Feroot AI*) - *Response to AI Action Plan RFI*

Dear Mr. D'Souza:

I'm the CEO and founder of Feroot Security Inc., and my job is to find, stop, and prevent the unauthorized, malicious collection of sensitive data that can harm national security, economic growth, and the personal privacy of citizens. I've exposed TikTok and DeepSeek transferring data directly to China. For instance, I found hidden code in the DeepSeek app designed to send user information straight to China Mobile, a company sanctioned under Executive Order 13959, signed by President Trump on November 12, 2020, and enforced by the U.S. on December 28, 2020.

I provided testimony before the U.S.-China Economic and Security Review Commission on "China's IT software products and the risks they pose to American users' data and privacy." My work and findings have contributed to the creation of bills, acts, laws, and policies in Texas, New York, the U.S. Congress, South Korea, Australia, and Australian territories, including a ban on DeepSeek on government devices.

Security of our data from adversarial states is not just about protecting privacy, it's about safeguarding our leadership in AI, our national security, and our economic prosperity.

Why? What is at stake?

1. Implications for National Security

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- **Undermining U.S. AI Leadership:** By leveraging American real-time data, adversarial states could accelerate their own AI advancements, challenging U.S. AI superiority as well superseding American AI superiority by having access to types of information that American AI systems do not have access to in countries of concern that are challenging the United States.
- **Economic and Military Vulnerabilities:** The combined risks of espionage, infrastructure sabotage, and market manipulation could slow U.S. economic progress and compromise military security.

The Top Two Areas of Threats and Concern:

1. Real-Time Data Collection Threats

- **Real-time Data Pools:** The continuous collection of personal data using commercial analytics and advertising tools, such as tracking pixels, recording and streams of video and audio—ranging from identifiable information and behavioral patterns to financial and biometric details—creates always up-to-date information on nearly every American, which gives adversarial AI systems an unfair advantage that American AI systems do not have on citizens of other countries, such as China.
- **Predictive and Strategic Exploitation:** Adversaries could use this data to accurately predict U.S. movements and activities, potentially tracking military deployments or anticipating government decisions, manipulating markets, stealing intellectual property, or disrupting financial systems.
- **AI-Powered Cyberattacks:** With real-time behavioral data, adversaries could develop highly sophisticated phishing attacks, adaptive malware, or digital operatives that mimic human interactions, making them harder to detect.

2. Threats from Humanoid Robots and other AI-Enabled Hardware

- **Weaponization of Robotics:** Devices particularly (especially) like humanoid robots sold for personal and commercial use, and other AI-enabled robotics or autonomous vehicles could act as sleeper agents and be activated to sabotage critical infrastructure and or disrupt lives of Americans and American businesses with pinpoint accuracy or at mass scale.
- **Targeted Physical and Digital Harm:** Such hardware might be used for precise targeted attacks or large-scale disruptions, ranging from espionage to causing physical harm and damage.

What can we do about it?

Recommendation 1: Control Export of American Personal Data to Adversarial Countries

- Limiting or Prohibit the transfer of any data collected from Americans—such as behavioral, financial, biometric, video or audio—to adversarial countries like China or entities controlled by governments such as the CCP.

Why It Will Work:

- Stops Data Exploitation: Prevents adversarial AI systems from using real-time American data for predictive modeling, cyberattacks, and espionage.

Benefits:

- Protects National Security: Cuts off a key resource that adversarial nations use to gain an edge in AI development and strategic planning.
- U.S. companies can position themselves as leaders in data privacy, appealing to consumers and businesses worldwide.
- Foreign competitors tied to adversarial states lose access to American data, weakening their AI capabilities.

Recommendation 2: Require Security Clearance for, or apply Tariffs or Ban Sell of Humanoid Robots and other AI-Enabled Hardware and Software Imported from Countries of Concern such as China People's Republic.

- Mandate that all AI-enabled hardware (e.g., humanoid robots, autonomous vehicles) and software imported from countries of concern—like China—undergo security audits before entering the U.S. market. Audits will screen for backdoors, hidden capabilities of AI models, unauthorized data collection, or remote tampering risks, considering the real possibility that it is impossible to prevent all of this issues in a possible ban of or substantial tariffs on imports of humanoid robots and other AI enabled hardware from countries of concern.

Why It Will Work:

- Prevents Compromised Tech: Blocks the import of AI systems that could act as sleeper agents or enable espionage, addressing your call for controls on imported AI tech.
- Easy to Enforce: Builds on existing import oversight, requiring minimal new infrastructure.

Benefits:

- American manufacturers of AI humanoid robots, hardware and software avoid these audits, gaining a speed and cost advantage over foreign competitors.
- Secures Critical Sectors: Ensures that AI used in infrastructure, defense, or healthcare is safe and trustworthy.
- Reduces the risk of physical or digital harm from unvetted foreign technology.

To ensure that these policy actions do not hamper private sector AI innovation, particularly for small businesses, it is essential that any new regulations or requirements are designed to:

- Minimize compliance costs and complexity for small businesses to comply with new requirements.
- Establish a unified federal regulatory framework that preempts state laws, reducing the need for businesses to navigate a patchwork of regulations.
- Include small businesses in the regulatory design process, ensuring that their perspectives are considered and that regulations are practical and feasible.